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LINE 13

26-CIV-00808

TREMIN CORPORATION VS. MICHAEL HARBOUR, ET AL.

TREMIN CORPORATION
MICHAEL HARBOUR

PATRICK J. WHITEHORN
CHARLES S. BRONITSKY

MOTION TO REMOVE MECHANIC'S LIEN

CONTINUED FROM 6/30/2026

TENTATIVE RULING:

The Motion to Remove Mechanic's Lien by Defendants and Cross-Complainants Michael Harbour and Andres Mediavilla ("Defendants") is DENIED.

As stated in the court's prior June 30, 2026 Minute Order, Plaintiff Tremin Corporation dba Bay West Builders ("Plaintiff"), a contractor, brings this action seeking payment for work performed on a home improvement contract for real property owned by Defendants. The Complaint alleges that the parties entered into an oral agreement for this work on or about December 9, 2021. (Complaint, ¶ 9.) On November 5, 2025, Plaintiff recorded a Notice and Claim of Mechanics' Lien against the property. (Complaint, Exh. B.) The Complaint includes a cause of action to foreclose on the mechanic's lien. Defendants bring this Motion seeking to remove the mechanic's lien.

"A motion to remove a mechanic's lien is recognized as a device that allows the property owner to obtain speedy relief from an unjustified lien or a lien of an unjustified amount without waiting for trial on the action to foreclose the lien. (*Howard S. Wright Construction Co. v. Superior Court* (2003) 106 Cal.App.4th 314, 318 (*Howard S. Wright*), citing *Lambert v. Superior Court* (1991) 228 Cal.App.3d 383.) The inquiry on a motion to remove a mechanic's lien is limited to the probable validity of the lien. (*Id.*, citing *Lambert, supra* at p. 387.) The determination is not the ultimate merit of the contractor's claim, but whether the contractor should be entitled to retain the security of the mechanic's lien pending resolution of the matter. (*Cal. Sierra Construction, Inc. v. Comerica Bank* (2012) 206 Cal.App.4th 841, 850.) The granting of a motion to remove a mechanic's lien is essentially a judgment on the underlying foreclosure action that no lien exists and removes the lien from the public records upon recordation of the judgment. (*Howard S. Wright, supra*, 106 Cal.App.4th at p. 318.)

Defendants raised two arguments in support of this Motion. The first argument is that the agreement does not comply with Business and Professions Code section 7159 and therefore it is illegal. The second argument is that the lien is invalid because it was not timely recorded. The court previously denied this Motion as to Defendants' second argument that the lien is invalid because it was not timely recorded, and that ruling was not contested. The court, however, requested supplemental briefing as to the first argument.

Procedurally, Plaintiff contends that the first argument was not raised until Defendants' reply and therefore it should be disregarded. Defendants' original memorandum claimed, albeit in the Statement of Facts, that the agreement was illegal because the oral agreement did not comply with section 7159. (Defendants' Memorandum, pp. 2-3.) Even if unclear though, Plaintiff admits that Defendants more clearly raised this argument in reply and cited to *Holm v. Bramwell* (1937) 20 Cal.App.2d 332 (*Holm*) in support. (Plaintiff's Supplemental Briefing, pp. 7:28-8:3.) Since the court thereafter continued this Motion for supplemental briefing by both parties and Plaintiff had an opportunity to respond to this argument, the court finds no basis to now disregard this argument. (See *Alliant Ins. Services, Inc. v. Gaddy* (2008) 159 Cal.App.4th 1292, 1308 [trial court has discretion to consider new issues raised in reply so long as other party had opportunity to respond].)

Business and Professions Code section 7159, subdivision (c), sets forth provisions for a home improvement contract, including that the contract be in writing and signed and dated by the parties. (See Bus. & Prof. Code, § 7159, subd. (c).) Since the Complaint alleges that the parties entered into an oral agreement to perform the work on the property (Complaint, ¶ 9), Defendants contend the agreement is illegal because it does not comply with section 7159 and therefore the mechanic's lien cannot be enforced.

Citing *Asdourian v. Askew* (1985) 38 Cal.3d 276, 291 (*Asdourian*), superseded by statute on other grounds as stated in *Tufeld Corp. v. Beverly Hills Gateway, L.P.* (2022) 86 Cal.App.5th 12, 27-29, the court noted that a wide range of exceptions has been recognized to section 7159. In *Asdourian*, the court concluded that a contract in violation of section 7159 did not present the type of illegality that automatically renders a contract void, but rather voidable depending on the factual context and the public policies involved. (*Asdourian, supra*, 38 Cal.3d at p. 293.) Further, in compelling cases, illegal contracts will be enforced in order to avoid unjust enrichment to a defendant and a disproportionately harsh penalty to the plaintiff. (*Id.* at p. 292.)

Defendants once again cite *Holm, supra*, 20 Cal.App.2d 332, as support that the mechanic's lien cannot be enforced because it is illegal. In *Holm*, a general contractor sought to recover from an owner money it paid to a subcontractor and to enforce a mechanic's lien. (*Id.*, at pp. 333-334.) The trial court found that the general contractor's claim was founded on an illegal contract because the subcontractor was not licensed, contrary to the law, and therefore the contract was void. (*Ibid.*) The Court of Appeal agreed and held that the trial court properly refused to vest a lien upon the property for payment of the amount sought. (*Id.* at p. 334.) Thus, *Holm* is distinguishable because it involved an unlicensed subcontractor. *Holm* did not deal with an oral contract that failed to comply with section 7159, as discussed in *Asdourian*.

Similarly, Defendants' reliance on *Loving and Evans v. Blick* (1949) 33 Cal.2d 603, does not support their argument. While the California Supreme Court found that a mechanic's lien may not be founded on an illegal contract procured contrary to law, the contract in that case was illegal and void based on the contractors' failure to comply with licensing requirements. (*Loving and Evans, supra*, at pp. 607, 612, 614.) Upon reversal, the California Supreme Court stated that the contractors could present to the trial court any matters that they claimed showed substantial

compliance with the licensing requirements so as to avoid a claim of illegality with respect to the contract. (*Id.* at p. 615.) Thus, *Loving and Evans* does not support Defendants' argument that the contract is void for failure to comply with section 7159.

Besides citing *Asdourian*, Plaintiff argues that the contract is not void based on *Hinerfeld-Ward, Inc. v. Lipian* (2010) 188 Cal.App.4th 86, 94-95. The Court of Appeal found that the trial court properly enforced the oral home improvement contract because the project was not a typical home improvement project, but it was a complex, high-end remodel on which the design continued to evolve over the years of planning and construction. (*Ibid.*) The architect repeatedly made changes to the design and described it as unique. (*Id.* at p. 94.) The homeowners also had an advocate on the project that was skilled in construction issues. (*Id.* at p. 95.) Plaintiff provides Toews' Supplemental Declaration as support that Defendants are not unsophisticated homeowners. (Supp. Toews Decl.)

"Generally, doubts concerning the meaning of the mechanics' lien statutes are resolved in favor of the claimant." (*Koudmani v. Ogle Enterprises, Inc.* (1996) 47 Cal.App.4th 1650, 1654.) Here, Defendants have not provided authority to show that the lien is void for failure to comply with section 7159. Based on *Asdourian*, the court finds the contract is not automatically void, but rather voidable depending on the facts. As such, the court cannot conclude at this point that there is no probable validity to the lien, and it denies this Motion.

Defendants filed evidentiary objections to Toews' Supplemental Declaration. Defendants did not number their objections, but instead they cite to specific paragraphs of the declaration. Defendants' objections to paragraphs 3-16 and 18-20 are OVERRULED.

The court notes that there is a case management conference before the Civil Commissioner on August 17, 2026. If the parties file a stipulation to mediation before then, then the case management conference will be vacated and, once mediation is completed, a case management/trial setting conference will be set in Department 4. If the parties would like a case management/trial setting conference in Department 4 so that a trial date can be set while they are engaging in the mediation process, they should jointly email Department 4 and the court will set a case management/trial setting conference.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, Rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

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LINE 14

26-UDL-00441

T. ANNE LASSAHN VS. JOANNE STILES

T. ANNE LASSAHN
JOANNE STILES

COREY M. POLLAK

MOTION TO SET ASIDE DEFAULT JUDGMENT

CONTINUED FROM 6/23/2026

TENTATIVE RULING:

Defendant's motion for relief from the default and default judgment entered on May 14, 2026, is DENIED.

This motion was originally heard on June 23, 2026 after the court issued a tentative ruling granting the motion, and the parties appeared at the hearing. Plaintiff had not received the statutory notice, a point raised in her opposition, and requested an opportunity to submit a declaration from the process server, which request the court granted and the parties agreed to this hearing date.

In the prior tentative ruling, the court found that while the Proof of Service, executed by registered process server Jeffrey Pink, indicates defendant was personally served with the summons and complaint, defendant offered evidence sufficient to rebut the presumption of service arising from the Proof of Service. Since the hearing, plaintiff provided a supplemental declaration of Jeffrey Pink, the process server. He provides a detailed account of the events surrounding the service. Defendant's supplemental declaration is insufficient to establish that the events described are false. The court credits Pink's supplemental declaration, including his statement that he was familiar with defendant based upon his prior service of documents on her and the fact that she attempted to avoid having him hand her the documents. Thus, defendant has not established that the default and default judgment are void under Code of Civil Procedure section 473, subdivision (d) for lack of proper service of the summons and complaint.

In the prior tentative ruling, the court found that defendant was entitled to relief from default under Code of Civil Procedure section 473, subdivision (b) because of mistake, inadvertence, and or excusable neglect. The court had credited defendant's statement that she believed that the summons and complaint had been posted and the failure of mailing provided her with additional time to answer. However, the evidence demonstrates that she was personally served. The summons states on its face that she had "10 DAYS, not counting Saturdays and Sundays and other judicial holidays, after this summons and legal papers are served on you to file a written response at this court and have a copy served on the plaintiff." Since she was personally served, she had only ten days to respond. As a pro per, she is charged with knowing the law and reasonable diligence on her part, in addition to reading the summons, would have informed her

that she only had ten days to respond. Thus, defendant also fails to show that she is entitled to relief under Code of Civil Procedure section 437, subdivision (b).

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

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LINE 15

26-UDL-00752

TERRY MICHAUD DBA HERITAGE REALTY PROPERTY MANAGEMENT VS. LISA KOLVITES

TERRY MICHAUD DBA HERITAGE REALTY PROPERTY MANAGEMENT
LISA KOLVITES

PRO SE

MOTION TO QUASH SERVICE OF SUMMONS

TENTATIVE RULING:

When a motion to quash is brought in an unlawful detainer action, the clerk of the court must set the hearing between three and seven days after filing (plus extension for service) and the opposition and reply may be made orally or in writing. (*Cal. Prac. Guide Landlord-Tenant* §§ 8:165 et seq. (TRG Aug. 2025 update).) Thus if plaintiff wishes to orally oppose, he may properly contest the tentative ruling and orally argue the opposition. Defendant would then have an opportunity to orally reply.

The court denies defendant Lisa Kolvites' unopposed motion to quash for lack of sufficient proof of service. The Proof of Service does not indicate where the motion was placed in the mail nor that it was in a sealed envelope with postage prepaid, which information is required under Code of Civil Procedure section 1013a. Thus, the court cannot presume that there has been proper notice of this motion. Without proper notice on plaintiff, the court cannot consider the motions. (See *Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 [court lacks jurisdiction to rule on a motion that has not been properly noticed].)

Substantively, the court also denies the motion. While defendant argues, citing to *Delta Imports, Inc. v. Municipal Court* (1983) 146 Cal. App.3d 1033, 1035, that a defendant can move to quash when the complaint fails to state a cause of action, the California Supreme Court subsequently held that a motion to quash service of summons may not be used to dispute the truth of the allegations in an unlawful detainer complaint. (*Stancil v. Superior Court* (2021) 11 Cal.5th 381, 402.)

Further, defendant states that plaintiff failed to comply with the Court of Appeal's holding in *Eshagian v. Cepeda* (2025) 112 Cal.App.5th 433, 459 regarding the required information for a three-day notice. However, the three-day notice is not defective. The purpose of the notice is to inform the tenant of the breach so the tenant can rationally choose whether to cure the breach and retain possession, quit the property, or contest the allegations. (*Id.* at p. 457.) *Eshagian* found the three-day notice at issue to be defective because it did not state when the notice period began or ended, nor did it indicate that the period excluded weekends and judicial holidays. It was dated December 19, 2022, but did not state the date it was served. In contrast, in this case, the notice adequately informed defendant of the date the three-day period began and ended. It states at the top of the notice that it was served on June 17, 2026, and then includes instructions for how to calculate the three-day period. These instructions inform defendant not to count the day of

service, that the first day counted must not be a Saturday, Sunday or judicial holiday and then, after the first day counted, def should continue counting only days that are not Saturdays, Sundays or judicial holidays until three such days are counted and that the last of the three such days counted is the deadline by which def must pay the rent demanded or deliver possession to plaintiff.

Since neither party is represented by counsel, if the tentative ruling is uncontested, pursuant to Code of Civil Procedure section 664.5, subdivision (a), the clerk of the court is to mail the minutes of the hearing along with a notice of entry of order and certificate of mailing to all parties.

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